

24STCV11617 24STCV11617

County: los-angeles

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Case Number: 24STCV11617 Hearing Date: August 14, 2026 Dept: 510

No.

19 - Oscar Perez v. James David Maldonado, et al.

Plaintiff

Oscar Perez's Twenty-One Motions to Quash Deposition Subpoenas

Plaintiff

Oscar Perez's Four Motions to Quash Defendant Music Express, Inc.'s
Deposition Subpoenas for Production of Business Records Directed to Law
Enforcement Agencies

Plaintiff

Oscar Perez moves to quash four deposition subpoenas Defendant Music Express,
Inc. served on (1) Los Angeles County Sheriff's Department, (2) California
Highway Patrol, (3) Los Angeles Police Department, and (4) Los Angeles School
Police Department.

A. Evidentiary

Objections

Defendants

make 6 evidentiary objections to Plaintiff's evidence. All objections are overruled.

Plaintiff

makes 4 evidentiary objections to Defendants' evidence. Objections no. 1 is sustained
based on lack of foundation. Objection nos. 2-4 are overruled.

B. Quash

Subpoena

Upon

a party's motion, a court "may make an order quashing [a] subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1(a).)

As

an initial matter, Defendants argue that Plaintiff's separate statement is noncompliant because it repeats the content of his motion. The Court declines to deny the motion on this basis. First, Plaintiff does not dispute specific requests in the deposition subpoena, and objects to the deposition subpoena as a whole; therefore, the separate statement has limited utility in the first instance. Also, a separate statement is not required when no response was provided to the discovery request. (See Cal. Rules of Court, rule 3.1345(b)(1).)

Defendant

seeks the following documents from each agency:

THE RECORDS REQUESTED ARE from

09/05/2014 to 08/27/2022 FOR THE FOLLOWING TYPES OF RECORDS: ALL LAW

ENFORCEMENT REPORTS, INCLUDING BUT NOT LIMITED TO, CRIME REPORTS, INCIDENT

REPORTS, CONTACT REPORTS, SUSPICIOUS BEHAVIOR REPORTS, FIELD INTERVIEW NOTES OR

REPORTS, FIELD INTERVIEW (FI) CARDS, INCIDENT OR EVENT CARDS OR REPORTS, ANY

AND ALL REPORTS WHERE OSCAR PEREZ-SIANUQUI AKA OSCAR PEREZ, OSCAR PEREZSIANUQUI

(DOB: 9/4/1996) IS LISTED AS A SUSPECT, A WITNESS, A PERSON OF INTEREST TO A

CRIME, OR PRESENT AT THE SCENE OF A CRIME. ALSO, ANY AND ALL REPORTS FROM CASE

NUMBER LASPA096960-01, AN INCIDENT OCCURRING ON JANUARY 2, 2021.

(Khatchaturian

Decls., Exs. A.)

Plaintiff objects

that the subpoena are overbroad and seek information that is irrelevant. The Court agrees.

First, the requested records have little to no relevance to the disputed issues in this case—namely, whether Defendants were negligent, whether Plaintiff contributed to the accident, and the extent of Plaintiff's damages. Defendants argue that because Plaintiff was allegedly impaired by alcohol and/or drugs at the time of the incident, the requested documents may support their comparative-fault defense and show "Plaintiff's knowledge of his own condition and the absence of mistake regarding his impairment." (Opp., at p. 7.) The Court fails to see how eight years of all law enforcement-related contacts would tend to show Plaintiff's knowledge of his impairment at the time of the incident or be otherwise relevant and admissible as non-propensity evidence at trial.

Second, the subpoenas are grossly overbroad as drafted. They request all reports in which Plaintiff appears as a witness, suspect, or person of interest for a period of eight years. This is not reasonably tailored to seek discoverable information.

Plaintiff's motions are granted.

Plaintiff
Oscar Perez's Seventeen Motions to Quash Defendants' Deposition
Subpoenas to Nonparty Witnesses

Plaintiff
Oscar Perez moves to quash seventeen deposition subpoenas Defendants Music Express, Inc. and James David Maldonado served on seventeen nonparty witnesses:

1. Elizabeth Avina
2. Omar Lisandro Banuelos
3. Ryan Castro
4. Carla Guzman
5. Loomis Mendoza
6. Hector Manuel Munoz

7. Cristal Mary Olvera

8. Brianna Perez

9. Angel Reyes

10. Michael Simental

11. Benedicto Aguirre Jr.

12. Samantha Cruz

13. Ivan Gonzalez

14. Nalleli Gonzalez

15. Sergio Gonzalez Jr.

16. Sergio Gonzalez Sr.

17. Yvonne Gonzalez

After

Plaintiff filed these motions, Defendants withdrew seven of the seventeen subpoenas directed at witnesses Benedicto Aguirre Jr., Samantha Cruz, Ivan Gonzalez, Nalleli Gonzalez, Sergio Gonzalez Jr., Sergio Gonzalez Sr., and Yvonne Gonzalez (identified as 11-17 above). (Weninger Decl., ¶ 15.) Four of these withdrawn subpoenas were directed at witnesses that resided more than 75 miles from the noticed deposition location. Therefore, the motions addressing the subpoenas directed at these seven witnesses are moot. The Court will only address the subpoenas directed at the remaining ten witnesses.

Plaintiff

also moves for a protective order that would preclude Defendants from taking these depositions.

A. Evidentiary

Objections

Plaintiff

makes 14 evidentiary objections to the declaration of Henderson. Objections nos. 9-11 are sustained based on relevance and speculation, and objection no. 13 is sustained based on speculation and lack of foundation. The remaining objections are overruled.

Plaintiff

makes 9 evidentiary objections to the declaration of Weninger. Objections nos. 1 (lack of foundation), 2 (speculation), and 9 (untimely filing) are sustained. The remaining objections are overruled.

B. Quash

Subpoena

Defendants seek deposition testimony from ten nonparty witnesses. According to Defendants, these witnesses were identified through an investigation of Plaintiff's social media accounts. Defendants argue that they believe the witnesses "have percipient knowledge of Plaintiff's life, his activities, his conduct, condition, and functioning during the period before the collision, and of his relationships and daily life during that period." (Weninger Decl., ¶ 6.)

Plaintiff objects

to the subpoenas primarily on the grounds that they constitute annoyance, oppression and undue burden. Here, the nonexpert discovery cutoff is August 23, 2026, and jury trial is set for September 22, 2026. Plaintiff contends that, after two years of discovery, Defendants improperly delayed deposing these witnesses until the eve of the discovery deadline and the height of trial preparation. Each deposition was unilaterally noticed to occur in-person in a nineteen-day time span. Plaintiff claims this discovery conduct reveals Defendants are improperly seeking a trial continuance or looking for "bad acts" character evidence.

In opposition,

Defendant asks the Court to extend the discovery cutoff or allow them to proceed with two depositions per day to occur on the five court days remaining between now and the discovery deadline. This would allow Defendants to take all remaining ten depositions before the deadline.

While the Court

agrees with Plaintiff that Defendants could have served these deposition

subpoenas much earlier, the testimony sought is not inherently improper. Defendants are entitled to seek information from the ten witnesses. The Court declines to speculate as to whether the information sought by Defendants will ultimately be admissible at trial.

However, the Court declines to extend the nonexpert discovery deadline to accommodate these last-minute depositions. Defendants did not move for a trial continuance, and cannot use their opposition brief to request similar relief because of their self-inflicted time crunch.

Given the circumstances, the Court exercises its discretion to allow all ten noticed depositions to proceed remotely, unless the parties agree otherwise. The parties should meet and confer to determine the feasibility of scheduling all ten depositions in the time remaining before the discovery cutoff. Both parties should balance the interests of Defendants in obtaining discovery with Plaintiff's counsel's ability to attend each deposition. Should the parties agree to take one or more depositions after the nonexpert discovery cutoff, no further court order is required. The Court declines to issue a protective order.

Disposition

Plaintiff

Oscar Perez's four motions to quash deposition subpoenas directed at law enforcement agencies are granted. The Court hereby quashes the subpoenas served on (1) Los Angeles County Sheriff's Department, (2) California Highway Patrol, (3) Los Angeles Police Department, and (4) Los Angeles School Police Department.

Plaintiff

Oscar Perez's ten motions to quash deposition subpoenas directed at Elizabeth Avina, Omar Lisandro Banuelos, Ryan Castro, Carla Guzman, Loomis Mendoza, Hector Manuel Munoz, Cristal Mary Olvera, Brianna Perez, Angel Reyes, and Michael Simental are denied. The Court modifies the subpoenas to allow all depositions to proceed remotely unless the parties agree otherwise.

Plaintiff

Oscar Perez's seven motions to quash deposition subpoenas directed at Benedicto Aguirre Jr., Samantha Cruz, Ivan Gonzalez, Nalleli Gonzalez, Sergio Gonzalez

Jr., Sergio Gonzalez Sr., and Yvonne Gonzalez are moot.